MYTH #1: It is illegal to remain married to your spouse after you've agreed to a shadow divorce.

If you no longer want to live with your spouse, you don't have to; there's no rule saying you can't separate. A shadow divorce is simply a way of reconfiguring your living arrangement so that you retain all the benefits of being married while living under separate roofs and maintaining separate accounts. You'll also avoid the exorbitant legal fees of getting a divorce. The only time it can get sticky legally is if you don't have the house in both of your names. Luckily, that won't matter, since you've put all your assets under joint ownership, right? (If not, reread chapter 5.)

MYTH #2: Ending your common-law relationship is much easier than getting a divorce.

In the most basic sense, this is true. To end a common-law relationship, you simply have to end it, no divorce papers required. But when common-law couples have children and/or assets—as most do—they often find themselves resorting to legal action when it comes to child custody or the division of property.

When a married couple divorces, the general rule is that if the value of assets increased during the union, that increased value is shared equally. *This is not true for common-law relationships*. Let's say the house you've lived in with your common-law partner for the last 15 years was not purchased in a joint ownership—it is only under your partner's name. You're going to have to prove that you are entitled to a share of that house. You'll either need to show that you made a financial contribution toward the purchase, or you will have to demonstrate to the court your contributions of time and effort (raising the kids, managing the household, etc.). If you can't